

Person Filing: _____

Address (if not protected): _____

City, State, Zip Code: _____

Telephone: _____

Email Address: _____

ATLAS Number: _____

Lawyer's Bar Number: _____

Representing ☐ Self, without a Lawyer or ☐ Attorney for ☐ Petitioner OR ☐ Respondent

For Clerk's Use Only

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Case Number: _____

Petitioner/Party A

SUMMARY CONSENT PETITION AND
RESPONSE FOR DISSOLUTION OF A NON-
COVENANT MARRIAGE

Respondent/Party B

Petitioner/Party A and Respondent/Party B Petition the Court and state the following under oath or affirmation:

1. Information About Party A:

Name: _____

Address: _____

Date of Birth: _____

Job Title: _____

Party A has lived in Arizona for _____ years and/or _____ months.

2. Information About Party B:

Name: _____

Address: _____

Date of Birth: _____

Job Title: _____

Party B has lived in Arizona for _____ years and/or _____ months.

3. Information About Our Marriage:

Date of Marriage: _____

City and State, or Country where we were married: _____

The following statements **MUST BE TRUE** for you to use this document and to qualify for divorce in Arizona **AND** you must check the boxes to indicate that the statements are true or your case may not proceed.

- ☐ We do not have a covenant marriage. (If not sure, refer to the Instructions for information).
- ☐ Our marriage is broken beyond repair (“irretrievably broken”) and there is no hope of reconciliation.
- ☐ We have tried to resolve our problems through Conciliation Services or going to Conciliation Services would not work.
- ☐ We do NOT have minor children together. OR ☐ We DO have minor children and this Court has jurisdiction to determine parenting time and authority for legal decision-making over minor child(ren) common to the parties because the minor child(ren) has/have lived with Party A or Party B in Arizona for at least the past 6 months.

4. 90-Day Requirement: (This statement **MUST** be true before you can file for divorce in Arizona.)

☐ Party A OR ☐ Party B has lived in Arizona (OR has been stationed in Arizona while a member of the Armed Forces), for at least 90 days before we filed this action.

5. Names, birth dates and addresses of all living children (natural or adopted) that are common to the parties:

Name(s) of Minor Child(ren)	Date(s) of Birth
_____	_____
_____	_____
_____	_____
_____	_____

Address(es) of Minor Child(ren):

☐ Information for additional children and/or addresses listed on attached page made part of this document by reference.

☐ Party A OR ☐ Party B is pregnant.

6. Statements and Waivers

The parties make the following statements.

- Formal service of process is waived and all issues are resolved by agreement pursuant to A.R.S. § 25-314.01.
- Party A and Party B hereby waive the conciliation court provision pursuant to A.R.S. § 25-381.01.
- Party A and Party B hereby waive the right to a default pursuant to Rule 44 A.R.F.L.P.
- By signing and filing this "Petition and Response," Respondent/Party B voluntarily appears in this matter and no Summons will be issued or served. This voluntary appearance has the same effect as if a Summons had been issued and served pursuant to Rule 40 A.R.F.L.P.

- e. Should either party wish to no longer enter into the Consent Decree, they must file a motion with the Court, within sixty (60) days of filing the Notice of Intent and Petition and Response.
- f. This Petition and Response and the attached Consent Decree constitute the Petition for Dissolution as well as the required Response pursuant to Rule 23 A.R.F.L.P.

7. Written Agreement:

Party A and Party B have reached an agreement that includes orders about spousal maintenance, division of property and debt, and as applicable, where the children will live, legal decision-making, parenting time, and child support. A copy of the written agreement is attached as Attachment 1 in the form of a Consent Decree.

8. Joint Requests to the Court: The parties jointly request the Court issue Orders for the following:

- A. Dissolve our marriage and return each party to the status of a single person.
- B. Enter orders as detailed on the attached Consent Decree regarding:
 - 1. Restoration of name (if applicable);
 - 2. Paternity (if applicable);
 - 3. Minor children (if applicable);
 - 4. Child Support (if applicable);
 - 5. Spousal Maintenance (if applicable);
 - 6. Community Property;
 - 7. Community Debts;
 - 8. Separate Property;

9. Separate Debts; and

10. Other orders (if applicable).

Petitioner/Party A Oath or Affirmation and Verification

I swear or affirm my statements in this Petition and Response and my requests to the Court are true and correct under penalty of perjury.

Petitioner/Party A Signature

Date

State of _____

County of _____

Subscribed and sworn to or affirmed to me this date _____ by

_____.

Notarial Officer

(Notarial Officer's Stamp or Seal)

Respondent/Party B Oath or Affirmation and Verification

I swear or affirm my statements in this Petition and Response and my requests to the Court are true and correct under penalty of perjury.

Respondent/Party B Signature

Date

State of _____

County of _____

Subscribed and sworn to or affirmed to me this date _____ by

_____.

Notarial Officer

(Notarial Officer's Stamp or Seal)